

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

MARY CORDERO and RONI SMITH,

Plaintiffs,

-against-

THE CITY OF NEW YORK and
NYPD OFFICER MD ISLAM,

Defendants.

----- X

To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 8, 2022

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
Attorneys for Plaintiffs
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

THE CITY OF NEW YORK, 100 Church St., New York, NY 10007

NYPD OFFICER MD ISLAM, c/o NYPD 7th Pct., 19 ½ Pitt St., New York, NY 10002

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

MARY CORDERO and RONI SMITH,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER MD ISLAM,

Defendants.

----- X

Plaintiffs, by their attorneys SIVIN, MILLER & ROCHE, LLP, as and for their
complaint herein, allege as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff Mary Cordero (hereinafter “Cordero”) was and is a resident of the County of New York, City and State of New York.
2. That at all times herein mentioned, plaintiff Roni Smith (hereinafter “Smith”) was and is a resident of the County of New York, City and State of New York.
3. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
4. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiffs; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

5. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

6. That at all times herein mentioned, defendant NYPD OFFICER MD ISLAM (hereinafter “Islam”) was and is a police officer employed by the NYPD.

7. That at all times herein mentioned, Islam was acting within the course and scope of his employment with the NYPD.

8. That at all times herein mentioned, Islam was acting under color of state law.

THE FACTS

9. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

10. That during the early hours of July 22, 2021, plaintiff Mary Cordero was a passenger in a taxi cab en route to her residence at 240 Madison Street, New York, NY.

11. That at some point during her ride in the taxi cab, Cordero fell asleep.

12. That at some point after she fell asleep, Cordero awoke in the taxi cab, which at that point had stopped in the street a couple of blocks from her residence, and discovered the taxi driver, whose name upon information and belief was “Md Alam,” physically on top of her in the rear seat of the taxi.

13. That in an ensuing effort to escape what was a physical and attempted sexual assault on her by the taxi driver, Cordero ended up falling or being ejected from the taxi cab and striking the adjacent pavement, losing consciousness and sustaining physical injuries.

14. That while Cordero still was lying on the pavement, plaintiff Roni Smith appeared at the scene and observed the injured Cordero on the pavement.

15. That Smith then verbally confronted the taxi driver and demanded an

explanation for Cordero's condition.

16. That the taxi driver then immediately exited his vehicle and fled on foot from the scene.

17. That thereafter NYPD Officer Md Islam, together with other NYPD officers, arrived at the scene and observed an obviously injured Cordero, with multiple bruises and scratches on her face and body.

18. That upon their arrival at the scene, Islam and the other NYPD officers were advised by both Cordero and Smith that Cordero had just been physically attacked by the taxi driver.

19. That Cordero and Smith also alerted Islam and the other NYPD officers of the immediate proximity of mounted video cameras that likely would have recorded the taxi driver's attack on Cordero.

20. That Cordero and Smith also alerted Islam and the other NYPD officers of other factors and evidence that would corroborate plaintiffs' version of events.

21. That notwithstanding that any reasonable officer would have concluded from the facts then presented that Cordero had been the victim of a crime and that Smith was a witness to the crime, Islam and the other NYPD officers caused both Cordero and Smith to be placed in handcuffs and under arrest.

22. That prior to arresting plaintiffs, Islam and the other NYPD officers deliberately and willfully ignored evidence that would have exculpated plaintiffs of any criminal activity, and would have vitiated any probable cause for plaintiffs' arrest.

23. That the arrests of plaintiffs were effectuated without a warrant and without probable cause to believe that either plaintiff had committed or was about to commit any crime.

24. That following their arrests, plaintiffs were forcibly taken by Islam and other NYPD officers to a police precinct, where both were held under unsanitary conditions for approximately ten hours.

25. That later in the day on July 22, 2021, Islam and other NYPD officers initiated a prosecution of Cordero, charging her with Theft of Services, a crime that Cordero did not commit and that Islam and the other NYPD officers did not have probable cause to believe she had committed.

26. That in support of the prosecution of Cordero, Islam authored and signed a Desk Appearance Ticket, charging Cordero with Theft of Services and directing that Cordero appear in court at a later date.

27. That on July 23, 2021, Islam and other NYPD officers then initiated another prosecution of Cordero and Smith, charging both plaintiffs with multiple crimes, including Assault in the Third Degree of Md Alam, Disorderly Conduct, and Harassment, crimes that Cordero and Smith did not commit and that Islam and the other NYPD officers did not have probable cause to believe they had committed.

28. That in support of the prosecution of Cordero and Smith, Islam authored and signed a Criminal Court Complaint, charging Cordero and Smith with Assault in the Third Degree, Disorderly Conduct, and Harassment.

29. That in support of the prosecution of Cordero and Smith, Islam also made statements of material fact to the District Attorney that he knew were false, and that were likely to persuade a court and/or jury that plaintiffs were guilty of crimes of which they actually were innocent.

30. That in support of the prosecution, Islam and the officers knowingly withheld

exculpatory evidence from prosecutors and plaintiffs, including but not limited to bodycam footage, stationery surveillance footage, and evidence that the taxi driver, Md Alam, did not have any visible injuries following the alleged assault on him by Cordero and Smith.

31. That as a result of the actions of Islam and the other NYPD officers, plaintiffs were required to make several court appearances and suffered a significant deprivation of their liberty and their ability to travel.

32. That on or about October 25, 2021, all criminal charges against Cordero were dismissed on the merits, and the criminal proceedings terminated favorably to Cordero.

33. That on or about October 26, 2021, all criminal charges against Smith were dismissed on the merits, and the criminal proceedings terminated favorably to Smith.

34. That the aforesaid actions of Md Islam and the other NYPD officers were intentional, spiteful, and malicious in nature.

35. That as a further result of the actions of Islam and the other NYPD officers, plaintiffs sustained physical and emotional injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, and have been otherwise damaged.

36. That at all times herein mentioned, Md Islam observed and/or had knowledge of the illegal and unconstitutional conduct of his fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, but deliberately failed to intervene.

37. That all of the causes of action herein fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST BOTH DEFENDANTS
(False Arrest/Imprisonment Under State Law)

38. Plaintiffs repeat and reallege each and every allegation set forth above as though

fully set forth at length herein.

39. That the aforementioned actions of Islam and the other NYPD officers in handcuffing, arresting, and imprisoning plaintiffs without probable cause and/or in causing plaintiffs to be handcuffed, arrested, and imprisoned without probable cause constituted a false arrest and false imprisonment of plaintiffs, for which Islam and the other NYPD officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ISLAM
(42 U.S.C. § 1983: False Arrest/Imprisonment)

40. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

41. That the aforementioned actions of Islam in handcuffing, arresting, and imprisoning plaintiffs without probable cause and/or in causing plaintiffs to be handcuffed, arrested, and imprisoned without probable cause constituted a false arrest and false imprisonment of plaintiffs and unlawful seizures of plaintiffs in violation of plaintiffs' rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiffs to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST BOTH DEFENDANTS
(Malicious Prosecution Under State Law)

42. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

43. That the aforementioned actions of Islam and the other NYPD officers in prosecuting plaintiffs and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent constituted a malicious prosecution of plaintiffs, for which Islam and the

other NYPD officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST ISLAM
(42 U.S.C. § 1983: Malicious Prosecution)

44. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

45. That the aforementioned actions of Islam in prosecuting plaintiffs and/or causing plaintiffs to be prosecuted for crimes of which he knew plaintiffs to be innocent constituted a malicious prosecution of plaintiffs and unlawful seizures of plaintiffs in violation of plaintiffs' rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiffs to recover damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST ISLAM
(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

46. Plaintiffs repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforesaid actions of Islam in conveying false information and evidence against plaintiff, and in withholding exculpatory evidence, constituted a denial of plaintiffs' right to a fair trial, in violation of plaintiffs' rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiffs to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST ISLAM
(42 U.S.C. § 1983 Claim Based on *Brady* Violation)

48. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

49. That the aforesaid actions by Islam in withholding exculpatory evidence and information constituted a violation of plaintiffs' rights under the Fourteenth Amendment to the United States Constitution and under *Brady v. Maryland*, 373 U.S. 83, and entitle plaintiffs to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST ISLAM
(42 U.S.C. § 1983 Claim Based on Failure to Intervene)

50. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

51. That as a result of the deliberate failure of Islam to intervene in the unconstitutional conduct of his fellow officers, plaintiffs sustained the injuries alleged herein and are entitled to recover damages against Islam under 42 U.S.C. § 1983.

WHEREFORE, plaintiffs demand judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against Islam, and attorney's fees against Islam pursuant to 42 U.S.C. § 1988, and plaintiffs also demand the costs and disbursements of this action.

Dated: New York, New York
July 8, 2022

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) currently is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 8, 2022

Edward Sivin

EDWARD SIVIN